graph (n) are amended to read as follows:

§ 3.1 Definitions.

* * * * *

(m) "In line of duty" means an injury or disease incurred or aggravated during a period of active military, naval, or air service unless such injury or disease was the result of the veteran's own willful misconduct. A service department finding that injury, disease or death occurred in line of duty will be binding on the Veterans Administration unless it is patently inconsistent with the requirements of laws administered by the Veterans Administration. Requirements as to line of duty are not met if at the time the injury was suffered or disease contracted the veteran was:

* * * * *

(n) "Willful misconduct" means an act involving conscious wrongdoing or known prohibited action (malum in se or malum prohibitum). A service department finding that injury, disease or death was not due to misconduct will be binding on the Veterans Administration unless it is patently inconsistent with the facts and the requirements of laws administered by the Veterans Administration.

(1) It involves deliberate or intentional wrongdoing with knowledge of or wanton and reckless disregard of its probable consequences.

(2) Mere technical violation of police regulations or ordinances will not per se constitute willful misconduct.

(3) Willful misconduct will not be determinative unless it is the proximate cause of injury, disease or death. (See §§ 3.301, 3.302.)

* * * * *

(72 Stat. 1114; 38 U.S.C. 210)

This regulation is effective January 11, 1963.

W. J. DRIVER,
Deputy Administrator.

[F.R. Doc. 63-361; Filed, Jan. 10, 1963; 8:50 a.m.]

Title 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2852]

[1823147]

[Arizona 032068]

ARIZONA

Partly Revoking Executive Order No. 8647 of January 22, 1941, and Public Land Order No. 559 of February 11, 1949 (Havasu Lake National Wildlife Refuge); Revoking Certain Reclamation Withdrawals, in Whole or in Part (Colorado River Storage Project)

By virtue of the authority vested in the President by section 1 of the Act of June 25, 1910 (36 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, and by virtue of the authority contained in section 3 of the Act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), it is ordered as follows:

1. Executive Order No. 8647 of January 22, 1941, which established the Havasu Lake National Wildlife Refuge, and Public Land Order No. 559 of February 11, 1949, which added lands thereto, and the departmental orders of January 3, 1903, September 8, 1903, June 4, 1930, and October 16, 1931, which withdrew lands for reclamation purposes in connection with the Colorado River Storage Project, and any other order or orders which withdrew lands for reclamation purposes under the provisions of the Act of June 17, 1902, supra, are hereby revoked so far as they affect the following-described lands:

GILA AND SALT RIVER MERIDIAN

T. 13 N., R. 20 W.,
Sec. 4, E½E½ and W½NE¼;
Sec. 10;
Sec. 14, N½, N½SW¼, SE¼SW¼, and SE¼;
Sec. 24, N½.
T. 14 N., R. 20 W.,
Sec. 28, SE¼;
Sec. 33, E½.

Containing approximately 2,280 acres.

2. Subject to any valid existing rights, the provisions of any existing withdrawals, and the requirements of applicable law, rules and regulations, the lands released from withdrawal by Paragraph 1 of this order are hereby opened to filing of applications, selections, and locations in accordance with the following:

(a) Until 10:00 a.m. on July 5, 1963, the State of Arizona shall have a preferred right of application to select the lands in accordance with and subject to the provisions of subsection (c) of section 2 of the Act of August 27, 1958 (72 Stat. 928; 43 U.S.C. 851, 852), and the regulations in 43 CFR:

(b) All valid applications and selections under the nonmineral public land laws other than any from the State of Arizona presented prior to 10:00 a.m. on February 9, 1963, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

(c) The lands have been open to applications and offers under the mineral leasing laws. They will be open to location under the United States mining laws at 10:00 a.m. on July 5, 1963.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Phoenix, Arizona.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

JANUARY 4, 1963.

[F.R. Doc. 63-301; Filed, Jan. 10, 1963; 8:46 a.m.]